

**Before the
Federal Maritime Commission**

Docket No. 25-03

EUROMARKET DESIGNS, INC. v.

**MSC MEDITERRANEAN SHIPPING COMPANY SA, OCEAN NETWORK EXPRESS
PTE. LTD., EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#011982),
EVERGREEN MARINE CORP. (TAIWAN) LTD., EVERGREEN MARINE (UK)
LIMITED, ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD.,
EVERGREEN MARINE (SINGAPORE) PTE. LTD., HMM COMPANY LIMITED,
MAERSK A/S, CMA CGM S.A., APEX MARITIME CO, INC., CHINA UNITED
TRANSPORT, INC., COSCO SHIPPING LINES CO., LTD., AND WAN HAI LINES
LTD.**

**RESPONDENT COSCO'S OPPOSITION TO COMPLAINANT'S MOTION FOR
INITIAL DECISION ON DEFAULT**

Respondent COSCO Shipping Lines Co., Ltd. ("Respondent" or "COSCO") hereby responds to Complainant Euromarket Designs, Inc.'s ("Complainant") Motion for Initial Decision on Default Against Respondents China United Transport, Inc. and COSCO (Dkt. No. 33) ("Motion for Default"). COSCO considers Complainant's Motion for Default is essentially moot based on the fact that COSCO has since answered the complaint (Dkt. No. 38), and that, in its Opposition to COSCO's Motion for Enlargement of Time to File an Answer or Otherwise Move (Dkt. No. 37), Complainant expressly stated that, "Complainant Euromarket Designs, Inc. does not oppose Respondent COSCO Shipping Lines Co., Ltd.'s ("COSCO") right to file an untimely answer.¹"

¹ The focus of Complainant's Opposition to COSCO's Motion for Enlargement of Time was on COSCO's right to "otherwise move." While COSCO is not filing a Reply to Complainant's Opposition, it is filing herewith a Motion to Sever. The FMC Rules do not preclude a party from filing a dispositive motion at any stage during a Proceeding. *See, e.g.* FMC Rule 69(f). COSCO

(Dkt. No. 43 at 1). This should be sufficient for the Presiding Officer to deny Complainant's Motion for Default.

Otherwise, as stated in COSCO's Motion for Enlargement of Time, the Complaint as served on COSCO was originally misrouted internally and sent to COSCO's Claims Department instead of its Legal Department. Once received in the Legal Department COSCO had to comply with internal approval processes for the selection of outside counsel. As a result, Respondent did not instruct counsel regarding its defense until February 11, 2025. Once the undersigned was retained, COSCO promptly answered the Complaint on February 13, 2025 and filed its Motion for Enlargement of Time that same day, only one day after Complainant filed its Motion for Default. As noted in Respondent's Motion for Enlargement of Time, the requested extension should not cause any undue delay or disadvantage given the present procedural posture of the case. This is further supported by the fact that all respondents in this action still have not been served. *See* Complainant's February 25, 2025 "Letter to the Secretary Regarding Service of CU Lines" (an entity unrelated to Respondent China United Lines. Ltd. was served with the Complaint for CU Lines and Complainant has requested the Commission re-serve the correct entity).

Respondent COSCO therefore respectfully requests that an Order be issued denying Complainant's Motion for Initial Decision on Default.

Dated: February 27, 2025

Respectfully submitted,

/s/ Matthew Thomas

Matthew Thomas
Emma C. Jones

therefore does not consider its late-filed Answer in this Action precludes it from the right to file a Motion to Sever.

BLANK ROME LLP
1825 Eye Street N.W.
Washington, DC 20006
(202) 772-5971
Matthew.Thomas@BlankRome.com
Emma.Jones@BlankRome.com

Keith B. Letourneau
BLANK ROME LLP
717 Texas Avenue, Suite 1400
Houston, Texas 77002
(713) 402-7640
Keith.Letourneau@BlankRome.com

**COUNSEL FOR RESPONDENT
COSCO SHIPPING LINES CO.,
LTD.**

CERTIFICATE OF SERVICE

I hereby certify that the foregoing pleading was served on all counsel of record by email on this 27th day of February 2025.

/s/ Emma C. Jones

Emma C. Jones